

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Appeal No. 82474-J/2022
(Muhammad Nadeem Khan vs. The State)

Murder Reference No.331/2022
(The State vs. Muhammad Nadeem Khan)

P.S.L.A. No.82858/2022
(Shah Baig vs. Ansar, etc.)

JUDGMENT

Date of hearing:	21.01.2026
Appellant by:	Sardar Khurram Latif Khan Khosa, Advocate
State by:	Mr. Muhammad Waqas Anwar, Deputy Prosecutor General.
Complainant by:	Mr. Muhammad Azhar Kashif, Advocate (for petitioner in PSLA No.82858/2022)

ALI ZIA BAJWA, J.:- Through this single judgment, we intend to decide **Crl. Appeal No.82474-J/2022** titled: *‘Muhammad Nadeem Khan vs. The State’* against conviction and sentence, **Murder Reference No.331/2022** titled: *‘The State vs. Muhammad Nadeem Khan’* for confirmation of death sentence and **PSLA No. 82858/2022**, titled: *‘Shah Baig vs. Ansar, etc.’* against acquittal of Ansar, Akram, Badar Nawaz and Allah Ditta/respondents as these are arising out of one and the same judgment dated 30.11.2022 (hereinafter *‘the impugned judgment’*), passed by the Additional Sessions Judge, Toba Tek Singh (hereinafter *‘the trial court’*).

2. Muhammad Nadeem Khan son of Jaffar Khan, caste Baloch, resident of Chak No. 188/GB, Tehsil & District Toba Tek Singh [mentioned as Mouza Peer Wala, Tehsil & District Jhang in the jail appeal] (hereinafter '*the appellant*') along with Ansar, Akram, Badar Nawaz and Allah Ditta (all since acquitted) was implicated in a private complaint filed by Shah Baig under Sections 302, 148 & 149 of Pakistan Penal code, 1860 (hereinafter '*the PPC*'), arising out of case FIR No.412/2021, dated 10.05.2021, offenses under Sections 302, 148 & 149 of the PPC, registered with Police Station Rajana, District Toba Tek Singh. He was tried by the trial court for the afore-mentioned offenses. The trial court, vide the impugned judgment, convicted and sentenced the appellant as follows: -

- Under Section 302(b) PPC, sentenced to death as Ta'zir with direction to pay Rs.3,00,000/- (three lacs) as compensation to the legal heirs of the deceased in terms of Section 544-A Cr.P.C. to be recovered as arrears of land revenue

3. The prosecution's version of the case, as encapsulated in the impugned judgment, is reproduced hereinbelow verbatim for the sake of clarity and completeness, so as to facilitate a proper appreciation of the factual matrix forming the basis of the prosecution theory of the case.

"05. Facts in brief as unfolded from the above titled complaint Exh.PC instituted by Shah Baig complainant are that complainant is resident of Chak No.188/G.B Tehsil & District Toba Tek Singh; on 10.05.2021 at about 06:00 P.M, his son Imran deceased was working in Killa No.11 Square No.61 of Chak No.188/G.B, then suddenly accused persons Nadeem armed with Pistol, Ansar armed with Pistol, Akram armed with Pistol, Badar Nawaz armed with Pistol alongwith accused Allah Ditta with empty handed with their common object came there and encircled his son Imran; accused Allah Ditta raised lalkara to commit murder of Imran and taught him a lesson to oppose them in investigation upon which Ansar accused made a fire shot which hit on the upper arm above the left elbow of Imran deceased, accused Nadeem also made a fire shot of Pistol which hit to left rib of Imran deceased who fell down on the ground; accused Akram made a fire shot which hit on the upper right arm above the elbow in the inner side of right arm towards the ribs; accused Badar made a fire shot which hit on front of abdomen of Imran deceased; upon hearing the noise of firing, complainant and PWs Noor Khan and Ali Sher attracted to the spot and witnessed the occurrence; accused persons ran away from the spot while raising lalkara and making Aerial firing.

Motive behind the occurrence was that Imran deceased used to join investigation of case FIR No.348/21 registered at Police Station Pir Mahal in favour of his maternal uncle Rab Nawaz and due to their personal grudge i.e. father of accused persons Nadeem and Ansar who was murdered in 2015 and allegation of that murder was levelled against complainant, his son Muhammad Shabban and

others; complainant was acquitted while his son Shabban and other co-accused were convicted in the said murder case for 10 years R.I against the said conviction, an appeal is still pending before the Hon'ble Lahore High Court, Lahore; due to this reason, accused persons committed the occurrence. Shamshad Ali S.I/O of this case came at the place of occurrence after receiving the information of the occurrence to whom complainant narrated the whole occurrence, who got written his above said version through police constable and got registered a case FIR No.412/21 at Police Station Rajana of his own and did not read over to complainant the above said his version which was narrated to him and obtained signatures of complainant on an application; postmortem of deceased was conducted in RHC Rajana; after registration of FIR, it came into knowledge of the complainant that Investigating Officer usually visits the accused persons and got incorporated extra injuries regarding which, the complainant informed the police high-ups that the Investigating Officer in order to give favour to the accused persons did not effect recoveries of weapons and also damaged the case by declaring the accused persons being not involved in this murder case except accused Nadeem but in vain. Hence, this private complaint."

4. After the registration of the crime report, the Investigating Officer carried out the investigation and recorded the statements of the prosecution witnesses in terms of Section 161 of the Code of Criminal Procedure, 1898 (hereinafter '*the Code*'). Upon culmination of the investigative process, a report under Section 173 of the Code was duly compiled and submitted before the trial court. However, being dissatisfied with the manner and outcome of the investigation, the complainant instituted a private complaint (Exh.PC). Upon recording of cursory evidence therein, the learned trial court issued process against the accused. During the trial, the complainant produced four prosecution witnesses, while the court examined six court witnesses. Upon conclusion of the prosecution evidence, the statements of the appellant and his co-accused were recorded under Section 342 of the Code, wherein they refuted the allegations and asserted their innocence. At the close of the trial, the learned trial court acquitted the co-accused but convicted and sentenced the appellant as detailed above.

5. We have heard the learned counsel for the parties at considerable length and with their able assistance, have meticulously examined the record available on the file. The submissions advanced on behalf of both sides have been given due consideration in the light of the evidence brought on the record and the applicable law.

6. In order to substantiate the charge against the appellant, the prosecution has relied upon the ocular account, medical evidence, the alleged motive, and the recovery of the purported weapon of offence, which was affected on the pointing out of the appellant. For a just determination of the validity of the conviction and sentence awarded by the learned trial court, it is imperative to undertake a thorough reappraisal of the entire evidence on record to assess whether it meets the stringent standard of proof required in criminal law, namely, proof beyond reasonable doubt.

7. According to the prosecution, the occurrence took place on 10.05.2021 at approximately 06:00 p.m., and the FIR was subsequently registered at 08:15 p.m. The distance between the place of occurrence and the police station concerned, being 16 kilometers, prima facie indicates that the matter was reported to the police without any undue delay. As per the prosecution, the dead body was received in the mortuary at 09:00 p.m., the police documents were provided to the Medical Officer by 10:00 p.m., and the post-mortem was conducted at 11:00 p.m., reflecting prompt and uninterrupted investigative steps. However, this chronology does not align with the medical evidence. Dr. Muhammad Tasneem Nawaz (PW-4) categorically stated in his deposition that the time of death, as reported to him, was around 05:00 p.m. on the same day, and that rigor mortis was fully developed at the time of the post-mortem examination.

8. Upon death, the human body undergoes a definite and recognizable sequence of post-mortem changes. These changes are of medico-legal importance and assist medical and forensic experts in forming an opinion regarding the probable time since death. For ease of understanding and assessment, such changes are generally classified into immediate, early, and late post-mortem stages. A brief description along with the approximate timeline of each post-mortem change is set out below, to facilitate a clearer and more comprehensive understanding of their medico-legal significance.

STAGE	POST-MORTEM CHANGE	SALIENT FEATURES	APPROXIMATE TIME
I	Cessation of Life	Permanent cessation of blood circulation and respiratory functions resulting in death	Immediate
II	Pallor Mortis	Paleness of skin due to stoppage of blood circulation; of limited value for time estimation	Immediate
III	Algor Mortis (Cooling of body)	Gradual fall in body temperature; average decrease of about 1–1.5°C per hour, subject to variation	Begins immediately
IV	Livor Mortis (Post-Mortem Hypostasis)	Bluish-purple discoloration of dependent parts due to gravitational settling of blood; indicates body position.	Appears within 30 minutes to 2 hours; fixed by 8–12 hours subject to surrounding conditions.
V	Rigor Mortis	Post-mortem stiffening of muscles due to chemical changes; follows Nysten’s Rule (head to toe)	Onset 1–2 hours; complete by ~12 hours; passes off within 24–36 hours
VI	Putrefaction	Decomposition of tissues by bacterial action; first sign is greenish discoloration of abdomen, followed by bloating and foul odour	Usually begins after 24–36 hours.
VII	Adipocere Formation	Conversion of body fat into a wax-like substance in moist, airless conditions; preserves body features	Develops over weeks to months
VIII	Mummification	Drying and shrinking of the body in hot, dry, well-ventilated conditions	Develops over weeks to months
IX	Skeletonization	Complete loss of soft tissues, leaving only the bony framework	Months to years depends upon environment.

9. For the proper and effective adjudication of the present case, the aspect of rigor mortis assumes substantial importance, as it has a direct bearing on the determination of the matter in controversy. It is, therefore, both appropriate and necessary to explain this post-mortem phenomenon in some detail to arrive at a just and reasoned conclusion. *Rigor mortis* is a post-mortem stiffening of the muscles that occurs after death due to biochemical changes in muscle tissue, particularly the depletion of adenosine triphosphate (ATP), which causes muscle fibers to become rigid and fixed. In simple terms, after death the muscles first relax, a stage known as *primary flaccidity*, and then gradually become stiff, beginning with the smaller muscles of the jaw and neck and later spreading to the entire body, before finally relaxing once again as decomposition sets in. *Nysten's Rule*, laid down by Pierre Nysten¹ explains that rigor mortis develops in a definite head-to-toe sequence, beginning with the small muscles of the face and jaw, then spreading to the neck, upper limbs, trunk, and finally the lower limbs, and it disappears in the same order. This sequence helps in making an approximate assessment of the time since death but must always be evaluated alongside other post-mortem findings and surrounding circumstances. Rigor mortis is a variable post-mortem change whose onset, progression, and duration depend mainly on temperature, the age and physique of the deceased, muscular activity prior to death, the cause and mode of death, and environmental conditions such as humidity, ventilation, immersion, and body covering. Since these factors substantially influence its course, rigor mortis by itself does not provide a reliable or conclusive basis for determining the exact time since death and must always be evaluated in conjunction with other post-mortem findings and the surrounding

¹ Pierre Nysten was a French physician and physiologist who, in 1811, formulated Nysten's Rule, describing the orderly head-to-toe progression of rigor mortis, a principle that continues to serve as a basic guide in medico-legal death investigations. Ref: '*Time since Death from rigor Mortis: Forensic Prospective*' published in Journal of Forensic Science on July 05, 2018. Available on <https://juniperpublishers.com/jfsci/JFSCI.MS.ID.555771.php#:~:text=Typically%20it%20starts%20first%20in,at%20the%20time%20of%20death.>

circumstances. The factors affecting the development of rigor mortis are briefly discussed hereinafter:

- Ambient and climatic temperature:

Temperature has a direct bearing on post-mortem muscular changes. In hot or summer conditions, rigor mortis ordinarily sets in at an earlier stage and also passes off earlier. In contrast, in cold or winter conditions, post-mortem chemical processes proceed at a slower pace, with the result that rigor mortis tends to appear later and persist for a longer duration.

- Age of the deceased:

The development of rigor mortis varies with the age of the deceased. In children, it is usually less pronounced and of shorter duration. In healthy adults, rigor mortis is generally well developed and more clearly appreciable. In elderly people, variations are commonly observed owing to age-related degenerative changes in muscle tissue, which may influence both the time of onset and the duration of its persistence.

- Physical build and muscle mass:

The degree of muscular development has a direct influence on the manifestation of rigor mortis. Bodies with well-developed musculature generally exhibit more pronounced and sustained muscular stiffening, whereas in persons with poorly developed or wasted muscles, rigidity may be less marked or may persist for an altered duration.

- Muscular activity prior to death:

Physical exertion, struggle, convulsions, or exhaustion prior to death materially affect the physiological condition of the muscles

at the time of death. Where such activity has occurred, the muscles are often already fatigued or depleted of their normal energy reserves, with the consequence that rigor mortis may set in earlier and pass off earlier and may exhibit variations in its usual pattern as compared to cases where death occurs without any preceding exertion.

- Cause and mode of death:

The manner in which death occurs, whether due to natural disease, poisoning, asphyxia, trauma, or sudden collapse, has a recognized effect on post-mortem muscular changes. Different causes of death may either hasten or delay the onset and disappearance of rigor mortis, depending upon their impact on the muscular and metabolic condition of the body at the time of death.

- Environmental conditions:

External circumstances surrounding the body, such as humidity, ventilation, immersion in water, and whether the body is clothed or covered, influence heat loss and moisture retention. These conditions, in turn, affect the rate at which rigor mortis develops and subsides and thereby contribute to variation from case to case.

In support of the aforementioned findings, due reliance may appropriately be placed on authoritative texts in the fields of medical and forensic sciences. These include Modi's Textbook of Medical Jurisprudence and Toxicology by Jaising P. Modi (27th edition, LexisNexis), Knight's Forensic Pathology by Pekka Saukko and Bernard Knight (4th edition, CRC Press), Parikh's Textbook of Medical Jurisprudence, Forensic Medicine and Toxicology by C.K. Parikh, edited by B.V. Subrahmanyam (9th edition, CBS Publishers & Distributors), Medical Jurisprudence and Toxicology (Practice & Procedure) by Sanjiv Gupta (Premier Publishing Company), and DiMaio's

Forensic Pathology by Vincent J.M. DiMaio and D. Kimberley Molina (3rd edition, CRC Press). These works are widely recognized as standard reference texts in the domain of forensic medicine and medico-legal practice and carry considerable authoritative value in matters requiring expert medical and forensic opinion.

10. Adverting to the merits of the case, the Medical Officer observed full rigor mortis at the time of autopsy, conducted five hours after the alleged time of death. This raises serious doubt about the prosecution's timeline, as in the month of May, it is implausible for rigor mortis to be fully developed within such a short span, indicating that death likely occurred much earlier than stated in the FIR. Such a glaring inconsistency between the ocular account and the medical findings delivers a significant blow to the prosecution's case, as it challenges the credibility of the alleged timeline and casts serious doubt on the reliability of the witnesses.

11. We have also thoughtfully considered the contention of the learned counsel for the appellant that the seminal discharge observed on the body of deceased during the post-mortem examination indicates that the deceased was engaged in sexual activity at the time of death. This argument, however, does not withstand medical or legal scrutiny. The mere presence of seminal discharge on the body of the deceased, who sustained a fatal gunshot injury and collapsed immediately thereafter, is a medically recognized involuntary reflex phenomenon. Such discharge is known as post-mortem seminal emission and can occur due to neurogenic shock, muscular contractions, hypostasis, rigor mortis, or decomposition-related changes. Such discharge, by itself, is not considered diagnostic of ante-mortem sexual activity and has been described in authoritative medical literature as a finding of neutral medico-legal significance. For clearer appreciation and proper understanding, the recognized reasons for seminal discharge are delineated hereinafter.

- **Neurogenic shock:** Sudden trauma or fatal injury may cause acute nervous system shock, resulting in involuntary discharge of seminal fluid at the time of death.
- **Spinal reflex mechanism:** A sudden injury or trauma involving the spinal cord may trigger a reflexive release of seminal fluid, even in the absence of any sexual activity, and such discharge is medically recognized as a possible involuntary physiological response.
- **Agonal muscular contractions:** At the time of death, the body may have muscle spasms, which can squeeze the prostate and seminal vesicles and cause semen to be released.
- **Rigor mortis:** Post-mortem stiffening of muscles, particularly involving the dartos muscle of the scrotum and pelvic musculature, may cause extrusion of semen.
- **Hypostasis (Gravitational pooling of body fluids):** Post-mortem settling of blood and fluids under gravity may result in passive seepage of seminal fluid at the urethral meatus.
- **Decomposition changes:** Putrefactive gas pressure during decomposition may expel semen or genital secretions, creating a false appearance of sexual activity.
- **Mechanical violence:** Mechanical violence means physical injury to the body caused by external force, leading to damage of tissues or organs. It includes blunt force injuries, sharp force injuries, and firearm or explosive trauma. Death due to mechanical violence is often associated with reflex or shock-related seminal discharge.
- **Death by Strangulation:** Seminal emission observed in death by strangulation is a recognized post-mortem phenomenon and, standing alone, carries no evidentiary value suggestive of sexual activity.
- **Autonomic nervous system failure:** Terminal failure of inhibitory autonomic control may lead to involuntary release of genital secretions. It means that at the time of death, the body's automatic

nerve control stops working properly, normal control is lost, and semen may be released without any sexual cause.

In view of the foregoing, it is manifestly clear that the presence of seminal discharge on the body of the deceased, in and of itself, cannot be construed as conclusive evidence of the deceased having engaged in any sexual activity prior to death. Reliance may appropriately be placed on the following leading authoritative texts in the fields of medical and forensic sciences, as well as the relevant judicial precedents. Pekka Saukko & Bernard Knight, Knight's Forensic Pathology, 4th ed. (CRC Press, 2016), Ch. 'The Forensic Autopsy', Jaising P. Modi, Modi: A Textbook of Medical Jurisprudence and Toxicology, 27th ed. (LexisNexis), Chapter 'Death from Asphyxia', Nageshkumar G. Rao, Textbook of Forensic Medicine and Toxicology, 2nd edition. Saeed Muhammad v. The State, 1985 P Cr. L J 2993 (Lahore High Court), Karam Khan v. The State, 1988 P Cr. L J 94 (Lahore High Court), Kanubhai Virjibhai v. State of Gujarat [2014(1) GLR 655] (Gujarat High Court), Ranjit Urang v. State of Tripura [2013(3) GLD 92] (Gauhati High Court).

12. The ocular account is furnished by the complainant, Shah Baig (PW-1), father of the deceased, and Noor Khan (PW-2), his first cousin. As per the crime report, co-accused Ansar initially fired two shots, hitting the deceased on the upper left arm above the elbow. The appellant then allegedly fired three shots, striking the left side of the deceased's ribs. Ansar fired again, hitting the right rib, causing the deceased to fall. Co-accused Akram followed with a shot to the right rib, and co-accused Badar fired the final shot, which struck the front of the abdomen. However, the private complaint presents a materially different version of events. It alleges that co-accused Ansar fired a single shot, hitting the deceased on the upper left arm above the elbow. The appellant is said to have fired one shot with a pistol, striking the deceased on the left rib, causing him to fall. Co-accused Akram allegedly fired a shot that hit the deceased on the upper right arm, above the

elbow on the inner side, extending towards the ribs. Lastly, co-accused Badar is stated to have fired a shot that struck the deceased on the front of his abdomen. The complainant's version in the private complaint materially departs from the initial crime report by reducing the number of fire shots and reattributing the injuries among the accused, evidently in an attempt to reconcile the ocular account with the medical evidence. This deviation assumes material significance in light of the post-mortem report, wherein Dr. Muhammad Tasneem Nawaz (PW-4) noted only four entry wounds on the body of the deceased, whereas the version set out in the crime report attributed as many as eight firearm shots. The improvements introduced in the private complaint to bridge the discrepancy between the ocular account and the medical evidence render the prosecution's case highly doubtful.

13. The Investigating Officer testified that the complainant and PW-2 were not residents of the vicinity of the occurrence. He further admitted that Ramzan son of Mahamand, Imdad Hussain son of Lal Khan, and Noor Khan son of Murad, all residents of Chak No. 188/GB, appeared before him and stated that they had witnessed the incident, while the complainant and PW-2 were not present at the scene at the relevant time. Relevant portion of his statement has been reproduced as infra:-

“On 18.05.2021, I visited the Chak No.188 GB wehre (*sic*) Ramzan s/o Mahamand, Imdad Hussain s/o Lal Khan and Noor Khan s/o Murad, all Bloch by caste, r/o Chak No.188 GB appeared before me and I recorded statements on Bar-daryfat in which they claim themselves being eye witness of the occurrence. In their above said statements they did not mention the presence of complainant Shah Baig, Noor Khan and Ali Sher PWs at the spot at the time of occurrence.”

14. It further appears highly improbable that, despite the presence of eyewitnesses who were close relatives of the deceased and admittedly available at the scene at the relevant time, the accused persons made no attempt whatsoever to cause them any harm, not even a single scratch, and instead left them completely unharmed, thereby affording them a free and unhindered opportunity to survive and subsequently depose against the accused at the trial. In this respect, reliance can be placed on the dictums of the Supreme Court reported in cases titled “RIASAT ALI and another versus

The STATE and another” (2024 SCMR 1224) and “RAFAQAT ALI alias FOJI and another versus The State and others” (2024 SCMR 1579).

15. The foregoing discussion pulls the rug out from under the prosecution’s case, shaking its core structure and raising grave concerns about the reliability of its story, thereby rendering the presence of eyewitnesses at the alleged scene highly doubtful.

16. One of the most crucial aspects of the case is the acquittal of co-accused Ansar, Akram, and Badar Nawaz, who were also found not involved by the Investigating Officer during the course of the investigation. These co-accused were specifically blamed for causing firearm injuries to the deceased. Therefore, their acquittal strikes at the very root of the prosecution’s case and raises serious questions about the truthfulness of the eyewitnesses, as the core of their testimony stands contradicted by the outcome of the investigation and the findings of the trial court. It is well established that the principle of *falsus in uno, falsus in omnibus*, false in one thing, false in everything, is not applied in a strict or mechanical manner in our criminal justice system. However, when witnesses are found to be untruthful or unreliable in relation to some of the accused, their statements cannot be accepted against the remaining accused unless there is strong, independent, and reliable corroboration to support their version. In such cases, the courts are required to exercise greater caution before placing reliance on their testimony. In this context, the credibility of the ocular account must be scrutinized to ascertain whether it is supported by independent corroboration sufficient to sustain the appellant’s conviction, particularly when other co-accused with similar role have been acquitted on the same evidence. The insistence on corroboration serves as a rule of caution, not of law. It is invoked to ensure that reliance is not placed on untrustworthy or partially discredited testimony without adequate support. We now proceed to examine whether the record contains any strong and independent corroborative evidence to support the ocular account, which was disbelieved in relation to the co-accused.

17. The first piece of corroborative evidence is the recovery of pistol .30-bore (P-1) on the pointing out of the appellant, which matched six crime empties (C-1 to C-6) collected from the place of occurrence as reflected from the forensic report (Exh.PN). However, perusal of the record reflects that at the time of recovery of pistol, five live bullets (P-2/1-5) were also taken into possession and secured through recovery memo Exh.PB. According to the contents of the forensic report (Exh.PN), only pistol (item P1) was recovered from the sealed bag, and the live bullets were missing. This discrepancy raises serious doubts about the integrity of the chain of custody and leads this Court to believe that the parcel received by the forensic lab was not the same as the one sealed at the time of the recovery or it was tampered. Hence, the alleged recovery of the crime weapon from the appellant is not confidence inspiring, therefore, inconsequential.

18. The motive set up in the crime report was that the deceased used to join the investigation of FIR No.348/21 in support of his maternal uncle, Rab Nawaz, which was registered due to the personal grudge of a murder of the father of the appellant in the year 2015, wherein allegations of murder were levelled against the complainant, his son Muhammad Shabban alias Shabo, and others. Although the complainant produced a copy of the judgment as Ex.PK, reflecting his acquittal and the conviction of his son Shabban alias Shabo with a sentence of ten years, the prosecution failed to bring on record any material or independent evidence to substantiate the alleged motive. During the course of investigation, no witness or documentary evidence was collected to support the motive part. The Investigating Officer, in his statement, categorically admitted that neither the complainant nor the prosecution witnesses were able to produce any evidence to prove the alleged motive and in his investigation motive part was found incorrect. Relevant extracts of his statement have been reproduced hereunder:

“The complainant and PWs did not take the stance of the murder of one Jaffar before me as motive.

During my investigation the motive alleged by the complainant in Exh.PA and the PW Noor Khan in his statement in Exh.DB and in the statement of Ali Sher was not proved as correct.”

In the foregoing, the record lacks strong and independent corroboration to lend credence to the testimony of witnesses already disbelieved regarding the co-accused. In the afore-stated facts and circumstances and keeping in view the dictum of law laid down by the Supreme Court of Pakistan handed down in MAQSOOD ALAM and another vs. The STATE and others – 2024 SCMR 156 and SHAUKAT HUSSAIN vs. The STATE through PG Punjab and another – 2024 SCMR 929 the appellant is also entitled to be acquitted on this score too.

19. Based on the facts and circumstances presented, it is evident that the prosecution has failed to provide compelling and coherent evidence to establish that the appellant committed the alleged crime. It is a cardinal principle of the criminal justice system that for extending the benefit of the doubt, there doesn't need to be several circumstances, rather one reasonable doubt is sufficient to acquit an accused, not as a matter of grace but as of right.²

20. In sequence of the aforementioned discussion, Crl. Appeal No.82474-J/2022 filed by the appellant is **allowed**, resultantly impugned conviction and sentences passed by the trial court are **set-aside** and the appellant is **acquitted** of the charge. The appellant is directed to be released forthwith provided he is not required to be detained in any other case.

21. Murder Reference No.331/2022 forwarded by the trial court is answered in the **negative**. Death Sentence awarded to the convict is **not confirmed**.

22. As far as PSLA No.82858/2022 filed by the complainant seeking leave to appeal against acquittal of Ansar, Akram, Badar Nawaz and Allah Ditta/respondents is concerned, as in the preceding paragraphs we have

² MUHAMMAD HASSAN and another vs. The STATE and others – 2024 SCMR 1427, NAJAF ALI SHAH vs. The STATE - 2021 SCMR 736 and The STATE through P.G. Sindh and others vs. AHMED OMAR SHEIKH and others - 2021 SCMR 873

disbelieved the prosecution story and presence of eyewitnesses at the place of occurrence, therefore, the same is devoid of any legal substance, which is accordingly **dismissed**.

(FAROOQ HAIDER)
JUDGE

(ALI ZIA BAJWA)
JUDGE

Approved for Reporting

JUDGE

JUDGE

The judgment was pronounced & written on 21.01.2026 and after completion, it was signed on **03.02.2026**.

Riaz